

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Miskovski	Team: Squad #14	CCRB Case #: 202205724	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Saturday, 08/13/2022 10:41 PM	Location of Incident: 32-31 31st Avenue	18 Mo. SOL 2/13/2024	Precinct: 114		
Date/Time CV Reported Sun, 08/14/2022 3:14 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/29/2022 12:35 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Brian Mulcare	31609	970014	QN SU CRT
2. PO Enrico Laurretta	19993	958799	PSA2 VIPER2
3. Officers			114 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Terrance Lloyd	01242	950760	114 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Enrico Laurretta	Abuse: Police Officer Enrico Laurretta forcibly removed § 87(2)(b) to the hospital.	A . Within NYPD Guidelines
B . PO Brian Mulcare	Abuse: Police Officer Brian Mulcare forcibly removed § 87(2)(b) to the hospital.	B . Within NYPD Guidelines
C . PO Enrico Laurretta	Off. Language: Police Officer Enrico Laurretta made offensive remarks to § 87(2)(b)	C . Substantiated
D . PO Enrico Laurretta	Discourtesy: Police Officer Enrico Laurretta spoke discourteously to § 87(2)(b)	D . Substantiated
E . PO Enrico Laurretta	Abuse: Police Officer Enrico Laurretta threatened § 87(2)(b) with the use of force.	E . Substantiated
F . PO Enrico Laurretta	Force: Police Officer Enrico Laurretta used physical force against § 87(2)(b)	F . Substantiated
G . PO Enrico Laurretta	Discourtesy: Police Officer Enrico Laurretta spoke discourteously to § 87(2)(b)	G . Substantiated
H . PO Enrico Laurretta	Abuse: Police Officer Enrico Laurretta threatened § 87(2)(b) with the use of force.	H . Substantiated
I . PO Enrico Laurretta	Force: Police Officer Enrico Laurretta used physical force against § 87(2)(b)	I . Within NYPD Guidelines
J . PO Brian Mulcare	Force: Police Officer Brian Mulcare used physical force against § 87(2)(b)	J . Within NYPD Guidelines
K . PO Enrico Laurretta	Force: Police Officer Enrico Laurretta used physical force against § 87(2)(b)	K . Within NYPD Guidelines
L . Officers	Force: Officers used a chokehold against § 87(2)(b)	L . Unfounded
M . Officers	Force: Officers restricted § 87(2)(b) breathing.	M . Unfounded
N . PO Enrico Laurretta	Discourtesy: Police Officer Enrico Laurretta spoke discourteously to § 87(2)(b)	N . Substantiated
O . PO Enrico Laurretta	Discourtesy: Police Officer Enrico Laurretta acted discourteously toward § 87(2)(b)	O . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
P . PO Enrico Laurotta	Discourtesy: Police Officer Enrico Laurotta spoke discourteously to § 87(2)(b)	P . Substantiated
Q . PO Enrico Laurotta	Abuse: Police Officer Enrico Laurotta threatened § 87(2)(b) with the use of force.	Q . Substantiated
R . PO Enrico Laurotta	Abuse: Police Officer Enrico Laurotta threatened § 87(2)(b) with the use of force.	R . Substantiated
S . PO Enrico Laurotta	Abuse: Police Officer Enrico Laurotta frisked § 87(2)(b)	S . Substantiated
T . PO Enrico Laurotta	Abuse: Police Officer Enrico Laurotta searched § 87(2)(b)	T . Substantiated
U . PO Enrico Laurotta	Abuse: Police Officer Enrico Laurotta failed to provide § 87(2)(b) with a business card.	U . Substantiated
V . PO Enrico Laurotta	Abuse: Police Officer Enrico Laurotta made a sexually suggestive remark to § 87(2)(b)	V . Substantiated

Case Summary

On August 14, 2022, § 87(2)(b) filed this complaint with IAB via phone. On August 29, 2022, § 87(2)(b) complaint was received at the CCRB. On September 30, 2022, the CCRB closed the case as complainant uncooperative. On October 26, 2022, § 87(2)(b) reopened the case with the CCRB.

On August 13, 2022, at approximately 10:41 p.m., § 87(2)(b) sat outside of a restaurant at 32-31 31st Avenue in Queens. The restaurant manager called 911 to report that § 87(2)(b) appeared intoxicated and was harassing customers. Police Officers Brian Mulcare and Enrico Laurretta, both of the 114th Precinct, arrived at the location. PO Laurretta told § 87(2)(b) to go home or that he was going to the hospital, with PO Mulcare echoing this statement shortly afterwards and later called for the ambulance (**Allegations A-B: Abuse of Authority, Within NYPD Guidelines**). PO Laurretta then told § 87(2)(b) “Get up and go home. You’re an old man. Go home,” (**Allegations C-D: Offensive Language, Discourtesy, substantiated**). PO Laurretta also told § 87(2)(b) “Don’t test me please. I don’t want to hurt you honestly” (**Allegation E: Threat of Force, substantiated**). PO Laurretta then pushed § 87(2)(b) backwards into his bicycle (**Allegation F: Force, substantiated**). While pushing § 87(2)(b) PO Laurretta said, “Get the fuck out of here,” and “Get up motherfucker,” (**Allegation G: Discourtesy, substantiated**). § 87(2)(b) sat back on the bench, and PO Mulcare and PO Laurretta attempted to grab § 87(2)(b) arms for handcuffing. PO Laurretta said, “Get up or I will knock your teeth in,” (**Allegation H: Abuse of Authority, substantiated**). PO Laurretta then punched § 87(2)(b) in the left arm (**Allegation I: Force, within NYPD guidelines**). As PO Laurretta utilized the hand strike, he said, “Give me your fucking hands asshole. Give me your fucking hands,” (**Allegation G cont.: Discourtesy, substantiated**). PO Mulcare then took § 87(2)(b) to the ground from the bench (**Allegation J: Force, within NYPD guidelines**). The officers continued to handcuff § 87(2)(b) and while doing so, PO Laurretta punched § 87(2)(b) in the back (**Allegation K: Force, within NYPD guidelines**). § 87(2)(b) then felt an officer place their knee on the back of his neck, causing him to be unable to breathe (**Allegations L-M: Force, unfounded**).

Once the officers placed § 87(2)(b) in handcuffs, § 87(2)(b) and the officers waited for approximately eight minutes for the ambulance to arrive. During these eight minutes, § 87(2)(b) repeatedly cried out and PO Laurretta mimicked § 87(2)(b) cries in a mocking tone two times (**Allegation N: Discourtesy, substantiated**). PO Laurretta further shined his flashlight four separate times in § 87(2)(b) face while he was handcuffed and lying on the ground (**Allegation O: Discourtesy, substantiated**). Also, while waiting for the ambulance, PO Laurretta said the following throughout the eight minutes: “Shut the fuck up”, “Holy shit”, “Oh you’re going to eat my ass?”, “I also came from pussy,” (**Allegation P: Discourtesy, substantiated**). At one point § 87(2)(b) said that the officers kicked him, and PO Laurretta responded, “If I could, I would,” (**Allegation Q: Abuse of Authority, substantiated**). § 87(2)(b) told PO Laurretta that he killed him, to which PO Laurretta responds, “That’s not a bad idea,” (**Allegation R: Abuse of Authority, substantiated**).

Once the EMTs arrive, PO Laurretta looked for § 87(2)(b) ID. PO Laurretta squeezed the pockets of § 87(2)(b) vest and reached into them, as well as the pockets of § 87(2)(b) sweatpants, eventually removing § 87(2)(b) wallet (**Allegations S-T: Abuse of Authority, substantiated**). PO Laurretta did not offer § 87(2)(b) a business card after the frisk and search (**Allegation U: Abuse of Authority, substantiated**). While the EMTs remove § 87(2)(b) on the stretcher, § 87(2)(b) complained that the officers roughed him up, to which PO Laurretta joked, “Oh you like it rough?” and laughed (**Allegation V: Abuse of Authority, substantiated**). The EMTs transported § 87(2)(b) to § 87(2)(b) Hospital.

No arrests or summonses resulted from this incident.

The investigation received body-worn camera (BWC) footage from PO Laurretta and PO Mulcare (**BR 01-02**). The relevant aspects of which will be discussed below.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Enrico Laurretta forcibly removed § 87(2)(b) to the hospital.

Allegation (B) Abuse of Authority: Police Officer Brian Mulcare forcibly removed § 87(2)(b) to the hospital.

Allegation (C) Offensive Language: Police Officer Enrico Laurretta made offensive remarks to § 87(2)(b)

Allegation (D) Discourtesy: Police Officer Enrico Laurretta spoke discourteously to § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Enrico Laurretta threatened § 87(2)(b) with the use of force.

The investigation established through NYPD Event § 87(2)(b) and its related 911 calls that the manager of Black Dahlia bar in Queens called to report that a drunk man with a bicycle was screaming at the employees and customers, and throwing things at them, which caused the restaurant to bolt the door (BR 3-5).

§ 87(2)(b) stated that he was sitting on a bench across from the restaurant and only drank two beers (BR 06). § 87(2)(b) was not intoxicated nor did he interact with anyone else. After five minutes of sitting on the bench, PO Laurretta approached § 87(2)(b) and told him to leave. The officers then took § 87(2)(b) to the ground, handcuffed him and took him to the hospital in an ambulance.

BWC footage from PO Laurretta shows that when officers arrived at the 01:00 mark, the manager of the restaurant comes to meet them and points to § 87(2)(b) while telling officers that § 87(2)(b) has been spitting on people (BR 01). PO Laurretta and PO Mulcare approach § 87(2)(b) and shine a light on him. There are four visible empty bottles next to § 87(2)(b) on the bench (at 01:59 in PO Mulcare's BWC (BR 02) they are more visible, one is clearly a Tito's vodka bottle). PO Laurretta asks § 87(2)(b) what he is doing at the location. § 87(2)(b) replies in a slurred voice that he is just sitting on the bench. PO Laurretta replies that § 87(2)(b) cannot be drinking there and needs to leave. PO Mulcare gestures to the bottles and asks § 87(2)(b) if those bottles were his, but § 87(2)(b) says that he does not know who they belong to. PO Laurretta then says "I'm going to give you an option here: you're going to go to the hospital or you're going home. I'm not joking around. I'm not smiling. Go home." § 87(2)(b) says that he will go home and use his bike. PO Laurretta says, "Get up and go home. You're an old man. Go home." (01:39) § 87(2)(b) asks how PO Laurretta knows that. PO Laurretta cautions, "Don't test me please. I don't want to hurt you honestly." § 87(2)(b) asks again how PO Laurretta knows that he is an old man. PO Laurretta replies that he is looking at § 87(2)(b) and adds, "Don't annoy me." § 87(2)(b) gets up and walks to his bike and replies that the officers should scratch him. At 01:57, PO Mulcare asks § 87(2)(b) "You want to go to the hospital? That is your other option. That bike or an ambulance. Which one?" § 87(2)(b) tells the officers that the officers can follow him on his bike. § 87(2)(b) walks back to the bench, sits, and says, "I am here." It is at this point that the officers begin to place § 87(2)(b) into custody to remove him to the hospital (the next sections of the BWC are covered under the following allegations).

PO Laurretta stated that upon approaching § 87(2)(b) he could immediately smell a strong odor of liquor and noticed several empty bottles of liquor next to him (BR 07). § 87(2)(b) appeared to slur his words, which led PO Laurretta to believe that § 87(2)(b) was intoxicated. § 87(2)(b) reported behavior by an identified complainant, the manager, also led PO Laurretta to believe that § 87(2)(b) was not only intoxicated, but also a threat to others from his belligerent behavior. PO Laurretta knew that if § 87(2)(b) would not willingly leave, it was further evidence that he was incapable of taking care of himself and would possibly need medical attention for his level of intoxication and behavior. Once § 87(2)(b) fainted at leaving and then sat back down, PO Laurretta knew at that moment that § 87(2)(b) needed to go to the hospital and sober up under medical care.

PO Laurretta further noted that § 87(2)(b) behavior toward the customers could have led to an arrest for disorderly conduct. PO Laurretta could not remember or speak to why he gave § 87(2)(b) the option to ride a bicycle in his intoxicated state. PO Laurretta did not know why he called § 87(2)(b) an old man. PO Laurretta meant that he felt that § 87(2)(b) was too old to be intoxicated on the street like that. Further, PO Laurretta stated that when he told § 87(2)(b) not to test him because he did not want to hurt him, that he wanted § 87(2)(b) to leave on his own and not get hurt. PO Laurretta did not intend to use force at that moment.

PO Mulcare provided a statement consistent with PO Laurretta's (BR 08). PO Mulcare added that he has personally dealt with hundreds of intoxicated persons during his tenure as an officer. In PO Mulcare's opinion, § 87(2)(b) appeared heavily intoxicated and could not take care of himself. PO Mulcare stated that he was unsure if § 87(2)(b) would have ridden his bike while intoxicated or if § 87(2)(b) could have walked home with the bicycle. PO Mulcare stated that he would have made § 87(2)(b) walk if § 87(2)(b) agreed to go home.

AIDED Report § 87(2)(b) completed by PO Mulcare noted that the officers called the ambulance for an intoxicated male (BR 09).

NYPD Patrol Guide Procedure 221-13 instructs officers to call an ambulance for persons who appear to be mentally ill or temporarily deranged and are conducting themselves in a manner in which a police officer "reasonably believes is likely to result in serious injury to himself or others," (BR 10).

NYPD Patrol Guide Procedure 200-02 instructs the officers to "treat every citizen with compassion, courtesy, professionalism, and respect," (BR 11). NYPD Patrol Guide Procedure 203-10 forbids officers from using discourteous or disrespectful remarks," (BR 12). DAO DCT Case 2015-15012 states that discourteous language can only be used in an attempt to gain control of a stressful situation and not to belittle a civilian (BR 18). DAO DCT Case 2017-17005 found that discourteous language was permissible as an exception to the rule in stressful situations or to gain control over a chaotic situation (BR 19).

The NYC Human Rights Commission, citing the NYC Administrative Code, establishes age as a protected class from discrimination (BR 13).

NYPD Patrol Guide Procedure 221-01 states that officers must use "only the reasonable force necessary to gain control or custody of a subject," (BR 14). It further adds that, "In determining whether the use of force is reasonable, members of the service should consider the following: nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the number of MOS; size, age, and condition of the subject in comparison to the MOS; subject's violent history; presence of hostile crowd; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence." NYPD Patrol Guide Procedure 221-02 instructs officers to "apply no more than the reasonable force necessary to gain control" (BR 15).

§ 87(2)(g)

§ 87(2)(b) the BWC video, in which § 87(2)(b) has at least four empty bottles of liquor. Further, § 87(2)(b) denied interacting with anyone, but the 911 call and the BWC show the identified manager of the restaurant accuse § 87(2)(b) of spitting on people and harassing customers. § 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegations C and D** be closed as *substantiated*.

§ 87(2)(g)
PO Laurretta made the statement, “Don’t test me, I don’t want to hurt you, honestly” was made before the officers made the final choice to remove him to the hospital and were giving him the chance to leave. § 87(2)(g)

It is therefore recommended that **Allegation E** be closed as *substantiated*.

Allegation (F) Force: Police Officer Enrico Laurretta used physical force against § 87(2)(b)

Allegation (G) Discourtesy: Police Officer Enrico Laurretta spoke discourteously to § 87(2)(b)

§ 87(2)(b) did not allege a push by PO Laurretta during his interview (BR 06). PO Laurretta’s BWC footage shows that once § 87(2)(b) sits back down on the bench, at 02:14, PO Laurretta grabs § 87(2)(b) by the scruff of his shirt, stands him up, and then shoves § 87(2)(b) against the bench, saying, “Get the fuck out of here,” (BR 01). § 87(2)(b) falls against the bench onto his back. PO Laurretta says, “Get up motherfucker.”

This same push is visible in PO Mulcare’s BWC footage from 02:14 to 02:20 (BR 02). PO Laurretta stated that he pushed § 87(2)(b) like that because he wanted to convince § 87(2)(b) to leave (BR 07). PO Laurretta did not mean to push § 87(2)(b) in any particular direction. PO Laurretta acknowledged the aforementioned statements and said that he only used the word “fuck” because of the heat of moment and for no other reasons.

NYPD Patrol Guide Procedure 221-01 states that officers must use “only the reasonable force necessary to gain control or custody of a subject,” (BR 14). It further adds that, “In determining whether the use of force is reasonable, members of the service should consider the following: nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the number of MOS; size, age, and condition of the subject in comparison to the MOS; subject’s violent history; presence of hostile crowd; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.” NYPD Patrol Guide Procedure 221-02 instructs officers to “apply no more than the reasonable force necessary to gain control” (BR 15).

NYPD Patrol Guide Procedure 200-02 instructs the officers to “treat every citizen with compassion, courtesy, professionalism, and respect,” (BR 11). NYPD Patrol Guide Procedure 203-10 forbids officers from using discourteous or disrespectful remarks,” (BR 12). DAO DCT Case 2015-15012 states that discourteous language can only be used in an attempt to gain control of a stressful situation and not to belittle a civilian (BR 18). DAO DCT Case 2017-17005 found that discourteous language was permissible as an exception to the rule in stressful situations or to gain control over a chaotic situation (BR 19).

As § 87(2)(b) was sitting on the bench and not offering any resistance to custody, as PO Laurretta still wanted § 87(2)(b) to leave the location. § 87(2)(b) was a single man against two officers, with no crowd present. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as *substantiated*.

PO Laurretta acknowledged that he had no reason for using the word “fuck” other than the heat of the moment. § 87(2)(g)

It is therefore recommended that **Allegation G** be closed as *substantiated*.

Allegation (H) Abuse of Authority: Police Officer Enrico Laurretta threatened with the use of force. § 87(2)(b)

Allegation (I) Force: Police Officer Enrico Laurretta used physical force against § 87(2)(b)

Allegation (J) Force: Police Officer Brian Mulcare used physical force against § 87(2)(b)

Allegation (K) Force: Police Officer Enrico Laurretta used physical force against § 87(2)(b)

Allegation (G, cont.) Discourtesy: Police Officer Enrico Laurretta spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) stated that he felt an officer place their hand on his neck and push him to the ground (BR 06). § 87(2)(b) fell to the ground on his stomach and hit his head on the concrete, causing a gash to his forehead. § 87(2)(b) then felt an officer punch his back near the spine.

BWC footage from PO Laurretta shows that from 02:19 to 02:35, PO Laurretta and PO Mulcare attempt to place § 87(2)(b) in handcuffs as he sits on the bench, but § 87(2)(b) pulls his arms away from the officers (BR 01). At 02:18, PO Laurretta says, “Get up or I’ll knock your fucking teeth in.” At 02:28, PO Laurretta attempts to grab § 87(2)(b) left wrist, but § 87(2)(b) pulls away and says, “Nah nah nah.” At 02:28, PO Laurretta tells § 87(2)(b) “Give me your fucking hands asshole, give me your fucking hands” and quickly strikes § 87(2)(b) left shoulder with his right arm. At 02:33, PO Mulcare grabs § 87(2)(b) right arm and vest behind the neck while placing his right leg between § 87(2)(b) legs. PO Mulcare then pulls § 87(2)(b) forward, taking him to the ground, face first onto his stomach. PO Mulcare and PO Laurretta push § 87(2)(b) into the ground and grab his arms to handcuff him. § 87(2)(b) pulls his arms away from the officers. At 2:37, PO Laurretta’s right arm briefly flashes across § 87(2)(b) upper back. § 87(2)(b) arms shake as he continues to pull them away from the officers. PO Laurretta tells § 87(2)(b) to shut the fuck up. § 87(2)(b) is slurring his words and complaining that the cops are killers. At 02:48, while handcuffing § 87(2)(b) PO Laurretta says, “Holy shit.” At 03:05, the officers finish handcuffing and turn § 87(2)(b) onto his side.

The interaction is also captured from 02:22 to 03:10 in PO Mulcare’s BWC (BR 02).

PO Laurretta stated that at this point, § 87(2)(b) was in police custody due to the planned hospital removal (BR 07). PO Laurretta did not independently remember any of the hand strikes he used as shown in the video. PO Laurretta remembered that there was some difficulty in handcuffing § 87(2)(b) because § 87(2)(b) kept pulling his arms away. PO Laurretta stated that he used the words “fuck” and “asshole” solely due to the heat of the moment and no other reason.

PO Mulcare stated that he initiated the takedown because § 87(2)(b) was not providing his arms for the handcuffing and at this point, § 87(2)(b) was in police custody to be removed to the hospital (BR 08). PO Mulcare noted that he thought that once he took § 87(2)(b) to the ground, that he would be easier to handcuff, so he took § 87(2)(b) to the ground. PO Mulcare did not remember witnessing any hand strikes by PO Laurretta. PO Mulcare also stated that § 87(2)(b) was consistently and constantly pulling his arms away from the officers during the handcuffing.

§ 87(2)(b) completed by PO Mulcare noted that officers used hand strikes and wrestling/grappling to overcome active resistance (BR 20).

§ 87(2)(b) medical records from § 87(2)(b) noted that § 87(2)(b) was brought in by EMS for intoxication (BR 26). § 87(2)(b) had abrasions to his forehead, left face and left arm. § 87(2)(b) was yelling racial slurs during triage and the officers called hospital security and an NYPD officer to the bedside. § 87(2)(b) left without treatment.

NYPD Patrol Guide Procedure 221-13 instructs officers to take the person into protective custody when it is clear that they are unable to take care of themselves due to mental illness or emotionally disturbed actions (BR 10).

NYPD Patrol Guide Procedure 221-01 states that officers must use “only the reasonable force necessary to gain control or custody of a subject,” (BR 14). It further adds that, “In determining whether the use of force is reasonable, members of the service should consider the following: nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the number of MOS; size, age, and condition of the subject in comparison to the MOS; subject’s violent history; presence of hostile crowd; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.”

NYPD Patrol Guide Procedure 221-02 instructs officers to “apply no more than the reasonable force necessary to gain control” (BR 15). It further defines “Active Resisting” as “physically evasive movements to defeat a member of the service’s attempt at control. Including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into custody.”

NYPD Patrol Guide Procedure 200-02 instructs the officers to “treat every citizen with compassion, courtesy, professionalism, and respect,” (BR 11). NYPD Patrol Guide Procedure 203-10 forbids officers from using discourteous or disrespectful remarks,” (BR 12). DAO DCT Case 2015-15012 states that discourteous language can only be used in an attempt to gain control of a stressful situation and not to belittle a civilian (BR 18). DAO DCT Case 2017-17005 found that discourteous language was permissible as an exception to the rule in stressful situations or to gain control over a chaotic situation (BR 19).

§ 87(2)(b) resistance to the officers placing him into custody by refusing to provide his arms for the handcuffs, combined with his level of apparent intoxication, § 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that Allegations I, J, and K be closed as *Within NYPD Guidelines*.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that Allegation H be closed as *substantiated*.

The investigation combined PO Lauretta’s usage of the word “fuck” and “asshole” at this point in the incident with his previous discourtesies since they were all used prior to and during § 87(2)(b) handcuffing. § 87(2)(g)

§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that Allegation G be closed as *substantiated*.

Allegation (L) Force: Officers used a chokehold against § 87(2)(b)
Allegation (M) Force: Officers restricted § 87(2)(b) breathing.

§ 87(2)(b) stated while he was on the ground an officer placed his knee on § 87(2)(b) neck, causing him to be unable to breathe. (BR 06).

PO Laurretta's BWC footage captures the entire takedown and handcuffing from 02:34 to 03:04 (BR 01). PO Mulcare at one point presses § 87(2)(b) head down for one second with PO Mulcare's hand on the back of § 87(2)(b) head. At no point does either officer's knee make contact with § 87(2)(b) neck.

PO Mulcare's BWC footage shows it from 02:36 to 03:05 (BR 02). At no point does either officer place their knee on § 87(2)(b) neck.

§ 87(2)(g) BWC shows the handcuffing in its entirety and shows that no officer placed their knee on § 87(2)(b) neck, § 87(2)(g). It is therefore recommended that Allegations L-M be closed as *unfounded*.

Allegation (N) Discourtesy: Police Officer Enrico Laurretta spoke discourteously to § 87(2)(b)

Allegation (O) Discourtesy: Police Officer Enrico Laurretta acted discourteously to § 87(2)(b)

Allegation (P) Discourtesy: Police Officer Enrico Laurretta spoke discourteously toward § 87(2)(b)

Allegation (Q) Abuse of Authority: Police Officer Enrico Laurretta threatened § 87(2)(b) with the use of force.

Allegation (R) Abuse of Authority: Police Officer Enrico Laurretta threatened § 87(2)(b) with the use of force.

In PO Laurretta's BWC footage from 02:35 to 10:33, the officers wait for the ambulance while § 87(2)(b) remains lying on the ground while handcuffed and turned on his side (BR 01). At 02:42 § 87(2)(b) yells while the officers handcuff him. PO Laurretta mimics the yells while telling § 87(2)(b) to "shut the fuck up." At 04:25, § 87(2)(b) shouts that the officers are killers. PO Laurretta responds, "Shut the fuck up," and shines his flashlight onto § 87(2)(b) face and whistles (04:34 in PO Mulcare's BWC BR 02). § 87(2)(b) continues to shout. At 05:43, PO Laurretta repeats to § 87(2)(b) "Shut the fuck up. Shut the fuck up. Shut up. Shut up." PO Laurretta then shines his flashlight into § 87(2)(b) face and shakes it for three seconds (5:58 to 6:02 in PO Mulcare's BWC). At 06:53, § 87(2)(b) continues to shout, and PO Laurretta asks, "What is wrong with you man? You're embarrassing yourself [he then mimics the sound of § 87(2)(b) shouting] Shut up." § 87(2)(b) continues to shout and yell and says that he will eat PO Laurretta's ass. At 07:32, PO Laurretta replies, "You're going to eat my ass? Alright. That's another one." At 07:45, PO Laurretta asks § 87(2)(b) for his name, but § 87(2)(b) tells PO Laurretta that he will tell him later. PO Laurretta says, "Nice to meet you, tell you later." PO Laurretta then shines his flashlight into § 87(2)(b) face and tells him to shut up (07:52 in PO Mulcare's BWC). PO Laurretta then asks § 87(2)(b) where he is from. § 87(2)(b) replies, "From pussy, where you come from?" PO Laurretta responds at 07:59, "I also came from pussy," and lightly chuckles. § 87(2)(b) continues to shout, cursing the officers. The officers tell § 87(2)(b) to stop screaming. At 09:16, § 87(2)(b) shouts, "you get away from me. You look like you would kick me." PO Laurretta responds, "If I could, I would," and laughs. § 87(2)(b) continues to shout at the officers. At 09:53, § 87(2)(b) shouts, "You fucking killed me." PO Laurretta responds, "That's not a bad idea." At 10:04, PO Laurretta shines the flashlight back in § 87(2)(b) face.

PO Laurretta stated again that the heat of the moment caused him to use discourteous language and no other reason (BR 07). PO Laurretta did not know why he mimicked § 87(2)(b) voice several times. PO Laurretta did not know why he shined his flashlight into § 87(2)(b) face several times. PO Laurretta noted that he had no reason to say that he would kick § 87(2)(b) if he could and that it was unprofessional. PO Laurretta did not have any independent recollection of

saying that it would not be a bad idea to § 87(2)(b) comment that the officers killed him; as such, PO Laurretta was unable to provide any reasoning behind the comment.

NYPD Patrol Guide Procedure 200-02 instructs the officers to “treat every citizen with compassion, courtesy, professionalism, and respect,” (BR 11). NYPD Patrol Guide Procedure 203-10 forbids officers from using discourteous or disrespectful remarks,” (BR 12). DAO DCT Case 2015-15012 states that discourteous language can only be used in an attempt to gain control of a stressful situation and not to belittle a civilian (BR 18). DAO DCT Case 2017-17005 found that discourteous language was permissible as an exception to the rule in stressful situations or to gain control over a chaotic situation (BR 19).

NYPD Patrol Guide Procedure 221-01 states that officers must use “only the reasonable force necessary to gain control or custody of a subject,” (BR 14). It further adds that, “In determining whether the use of force is reasonable, members of the service should consider the following: nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the number of MOS; size, age, and condition of the subject in comparison to the MOS; subject’s violent history; presence of hostile crowd; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.” NYPD Patrol Guide Procedure 221-02 instructs officers to “apply no more than the reasonable force necessary to gain control” (BR 15).

The discourtesies for **Allegation N** occurred once § 87(2)(b) was already handcuffed and lying on the ground, thereby creating a separate set of conditions that the investigation considered.

§ 87(2)(g)
§ 87(2)(b) was handcuffed and lying on the ground. There was no crowd present. § 87(2)(g)

It is therefore recommended that **Allegation N** be closed as *substantiated*.

PO Laurretta himself admitted that there was no reason for the mimicry of § 87(2)(b) cries and shouts nor the shining of the flashlight into § 87(2)(b) face. § 87(2)(g)

It is therefore recommended that **Allegations O** and **P** be closed as *substantiated*.

The investigation credited that PO Laurretta was an NYPD officer in uniform addressing an individual who was in his custody. § 87(2)(g)

PO Laurretta’s statements of “If I could, I would,” and “That’s not a bad idea” regarding using force on § 87(2)(b) were made when § 87(2)(b) was handcuffed and only screaming. § 87(2)(g)

It is therefore recommended that **Allegations Q** and **R** be closed as *substantiated*.

Allegation (S) Abuse of Authority: Police Officer Enrico Laurretta frisked § 87(2)(b)

Allegation (T) Abuse of Authority: Police Officer Enrico Laurretta searched § 87(2)(b)

Allegation (U) Abuse of Authority: Police Officer Enrico Laurretta failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) stated that when the EMTs arrived, PO Laurretta reached into § 87(2)(b) vest pocket and grabbed § 87(2)(b) wallet (BR 06). § 87(2)(b) told PO Laurretta to stop, and PO Laurretta did so. PO Laurretta did not remove § 87(2)(b) wallet.

PO Laurretta’s BWC footage shows that at 12:01 while § 87(2)(b) is lying on the ground, PO Laurretta squeezed § 87(2)(b) left vest pocket (BR 01). PO Laurretta then reaches into the front left pocket of § 87(2)(b) sweatpants and asks § 87(2)(b) for his ID. PO Laurretta further reaches

into the front right interior pocket of § 87(2)(b) vest. Shortly thereafter, at 13:34, PO Laurretta reaches again into § 87(2)(b) vest pocket on the outside and inside, and this time, removes the wallet. § 87(2)(b) tells PO Laurretta to stop. PO Laurretta places the wallet back into the interior vest pocket. At no point in the BWC footage does PO Laurretta provide § 87(2)(b) with a business card.

PO Laurretta noted that he took the wallet from § 87(2)(b) vest pocket to get ID for the EMTs (BR 07). PO Laurretta did not have an independent recollection of any specific actions that he took aside from what he saw in the BWC video. PO Laurretta was solely looking for the ID for § 87(2)(b) and nothing else. PO Laurretta explained that it was a courtesy to the EMTs. PO Laurretta acknowledged that he should have provided § 87(2)(b) with a business card but forgot due to the heat of the moment.

In *People v. De Bour* 40 N.Y.2d 210, the court found that officers needed reasonable suspicion that a crime was, is being, or is about to be committed in order to enter the interaction level that could allow for a frisk (BR 21). To further justify the frisk, officers must have reasonable suspicion that the person is armed. Only once the frisk has returned positive possible results may officers then search.

NYPD Patrol Guide Procedure 212-11 states that officers may only frisk for weapons and can only search after they have frisked an area on a person (BR 22).

NYPD Patrol Guide Procedure 221-13 does not instruct officers to search people designated as EDPs for their ID to assist EMS (BR 10).

NYC Administrative Code 14-174 states that officers must provide a business card when they frisk an individual and/or when they search an individual (BR 23).

§ 87(2)(g)

It is therefore recommended that **Allegations S and T** be closed as *substantiated*.

PO Laurretta admitted that he should have provided § 87(2)(b) with a business card but failed to do so. § 87(2)(g)

It is therefore recommended that **Allegation U** be closed as *substantiated*.

Allegation (V) Abuse of Authority: Police Officer Enrico Laurretta made a sexually suggestive remark to § 87(2)(b)

PO Laurretta's BWC video shows that at 14:40 when § 87(2)(b) is on the stretcher with EMS and officers surrounding him, he says that the officers "roughed him" (BR 01). PO Laurretta responds, "Oh you like it rough," and slightly laughs with an EMT.

PO Laurretta stated that he did not mean anything by the comment and was solely being unprofessional (BR 07). PO Laurretta stated that he did not mean it in a sexually suggestive manner, thought it was unprofessional and he should not have said it.

NYPD Patrol Guide Procedure 200-02 instructs the officers to "treat every citizen with compassion, courtesy, professionalism, and respect," (BR 11). NYPD Patrol Guide Procedure 203-10 forbids officers from using discourteous or disrespectful remarks," (BR 12).

NYPD Patrol Guide Procedure 210-01 states that "The Department has a zero-tolerance policy toward all forms of sexual assault and sexual harassment of prisoners by other prisoners or any other person" (BR 24).

Though PO Laurretta stated that he did not mean the comment in a sexual manner, the joke itself relies on the double entendre that references the sexual usage of the phrase § 87(2)(g)

It is therefore recommended that **Allegation V** be closed as *substantiated*.

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
- PO Mulcare has been a member of service for two years and has been a subject in one other CCRB complaints and two allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- PO Lauretta has been a member of service for eight years and has been a subject in seven CCRB complaints and 19 allegations, of which one was substantiated.:
 - § 87(2)(g) [REDACTED]
 - § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) [REDACTED] filed a Notice of Claim with the City of New York claiming assault, battery, and false arrest and seeking an undisclosed amount as redress (**BR 25**). § 87(2)(b) [REDACTED]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 14

Investigator:	<u>Michael Miskovski</u>	<u>SI Michael Miskovski</u>	<u>09/26/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Cassandra Fenkel</u>	<u>IM Cassandra Fenkel</u>	<u>09/27/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date